

Mohd. Iqbal Ansari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 May 2014 · WRIT - C No. 26687 of 2014 · **Writ disposed; licensee to decide Clause 4.3 application in accordance with law expeditiously.**

HEADNOTE

On the licensee's statement that a new-connection application complying with Clause 4.3 of the Electricity Supply Code, 2005 would be considered in accordance with law, the High Court disposed of the writ directing an expeditious decision, noting that electricity is an essential service and it was summer.

FACTUAL SUMMARY

Mohd. Iqbal Ansari filed a writ petition in the Allahabad High Court seeking a new electricity connection from the distribution licensee (respondents 2 and 3). At the outset of the hearing, counsel for the licensee submitted that Clause 4.3 of the Electricity Supply Code, 2005 governs new connections and that if the petitioner had applied in accordance with that clause, the licensee would consider the application in accordance with law. The Court disposed of the petition on that statement.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection — consider application in accordance with law

HOLDING

If the petitioner complies with Clause 4.3 of the Electricity Supply Code, 2005, the licensee shall take a decision on the new-connection application in accordance with law expeditiously, electricity being an essential service. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO A NEW CONNECTION ON THE MERITS

The Court did not examine whether the petitioner had applied or complied with Clause 4.3, or whether a connection was due. ¶ 1